

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 08/17/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09>

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C23-02697
CASE NAME: IDO ADLER VS. ANDERSON RANCH SINGLE FAMILY OWNERS ASSOCIATION
HEARING ON SUMMARY MOTION
FILED BY: ADLER, IDO
TENTATIVE RULING:

Before the Court is a motion for summary adjudication filed by plaintiffs against defendant, Anderson Ranch Single Family Owners Association ("Anderson Ranch"). The motion targets the first, second, fifth, and sixth causes of action alleged in the Second Amended Complaint. The motion is **denied**.

This motion is the second motion for summary adjudication filed by plaintiffs. Plaintiffs filed their first motion for summary adjudication in June of 2025 wherein they sought adjudication as to their First Amended Complaint ("FAC") on issues including quiet title to an easement by necessity and declaratory relief and injunctive relief with respect to use of the Easement Area (which was undefined in the FAC). Plaintiffs also moved for adjudication on several of defendant's affirmative defenses

(twelfth, thirteenth, fourteenth, and fifteenth), three of which related to the effect of the defendant's CC&Rs on plaintiff's property and their easement claim.

Defendant opposed the motion in the basis that the scope of any easement (by necessity or otherwise) is limited to that required for open space access and is not the broad easement that would permit the residential development that plaintiffs seek to pursue. The motion was heard on October 6, 2025 by Judge Devine, the judge assigned to the case at that time, and an Order denying the motion was filed on November 13, 2025, wherein the Court adopted its written tentative ruling after taking the matter under submission.

Plaintiffs moved for leave to amend their complaint, which the Court granted. On February 2, 2026, plaintiffs filed the Second Amended Complaint ("SAC"). The SAC includes six causes of action with the following titles: (1) Quiet Title – Easement by Necessity; (2) Declaratory Relief and Injunctive Relief; (3) Quiet Title – CCP § 771.010-771.020; (4) Declaratory Relief and Injunctive Relief; (5) Quiet Title, (6) Declaratory Relief. Very little is changed with respect to the facts asserted. Plaintiffs added two paragraphs which state:

24. The proposed Easement Area is a 55-foot-wide continuation of Hill Meadow Drive, which will accommodate mandatory fire access, ADA sidewalks, utility corridors, and other development constraints imposed by regulatory agencies. A true copy of the proposed location and legal description of the Easement Area is attached as Exhibit B.

25. The width of this road is necessary for the proposed 38-unit residential development wherein at least 20% of the units are low-to-moderate income units, which is necessary to qualify for the Builder's Remedy to this development. The total as-built value of the proposed development is \$100,000,000.00.

The "new" fifth cause of action seeks "a judgment that the Hill Meadow Property is free and clear of any covenant, restriction, lien, or encumbrance asserted by Anderson Ranch, Unknown Defendants, and Does 1 through 20 [...]" (SAC, ¶170.)

The "new" sixth cause of action seeks a declaration from the Court that "Hill Meadow Property is not part of the Common Area as defined in the CC&Rs and is not subject to the CC&Rs." (SAC, ¶172.)

After filing the SAC, plaintiffs filed this second motion for summary adjudication on March 25, 2026. Plaintiffs contend they have "newly discovered facts and circumstances" sufficient to "entirely dispose of the first and second causes of action" and allow them to proceed pursuant to Code of Civil Procedure, § 437c (f)(2), which states:

A party shall not move for summary judgment based on issues asserted in a prior motion for summary adjudication and denied by the court unless that party establishes, to the satisfaction of the court, newly discovered facts or circumstances or a change of law supporting the issues reasserted in the summary judgment motion.

Plaintiffs' allegedly newly discovered facts or circumstances consist of (1) a legal description for a 55-foot easement to Parcel B by a licensed land surveyor, and (2) deposition testimony from Danville's Chief of Planning purportedly confirming that a 55-foot roadway is consistent with the public road standard in Danville, and that Danville did not have any objection to the proposed location for the roadway.

Defendants again oppose this motion, in part on the basis that the survey and testimony are not sufficient to permit a second motion for summary adjudication.

While the fifth and sixth causes of action are new to the SAC and therefore could not have been part of the prior motion for summary adjudication, these causes of action add nothing in terms of substance and instead overlap with previously alleged facts and theories. "The declaratory relief statute should not be used for the purpose of anticipating and determining an issue which can be determined in the main action. The object of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues." (*Hood v. Superior Court* (1995) 33 Cal.App.4th 319, 324 [writ of mandate requiring trial court to deny motion for summary adjudication because party may not select issues, other than duty and punitive damages, implicated in one or more causes of action, amend that pleading to add a cause of action for declaratory relief as to those issues, and then obtain a summary adjudication of the declaratory relief cause of action].)

In any event, as pointed out in the opposition, the scope of the easement is not undisputed. The easement width would not necessarily be 55 feet, as plaintiffs have pleaded. It could be 28', 34', or 40' depending on the size of the development. (Memorandum of Points and Authorities in Support of Opposition, 11:7-21.)

The Court declines to reconsider the prior order issued by Judge Devine. The new motion involves the same legal issues.

The Court declines to rule on the objections because they are not material to the disposition of this motion. (Code Civ. Proc., § 437c (q).)

2. 9:00 AM CASE NUMBER: C24-02209
CASE NAME: PATRICK MORRISSEY VS. ALBERT SEBILIA
HEARING ON SUMMARY MOTION BY CHRISTOPHER ROBERTS AND COURTLY STEVENS
FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Courtly Stevens Roberts and Defendant Christopher Allen Roberts (collectively, "Defendants")'s motion for summary judgment or in the alternative summary adjudication. The Motion relates to Plaintiff Patrick Morrissey and Plaintiff Alexandra Morrissey (collectively, "Plaintiffs")'s Second Amended Complaint for (1) private nuisance, (2) damages for public nuisance, (3) injunctive relief for abatement of nuisance, (4) damages for trespass, (5) diversion of surface waters, (6) diversion of surface water to groundwater, (7) negligence, and (8) declaratory relief.

As a threshold issue, the Court notes that there are procedural defects in both the Notice of Motion and Separate Statement. A separate statement seeking summary adjudication must state verbatim the noticed issues from the notice of motion at the beginning of each issue for summary adjudication. (See Calif. Rules Court, rule 3.1350, subd. (b); *Truong v. Glasser* (2010) 181 Cal.App.4th 102, 118.) Defendants' separate statement fails to comply with this requirement.

Here, Defendants' notice reads as follows:

1. Plaintiffs' First, Third and Fourth Causes of Action are barred because the SAC fails to plead